

tive. In situations of abuse of office, an action for damages may offer the only realistic avenue for vindication of constitutional guarantees. *Butz v. Economou*, *supra*, at 506; see *Bivens v. Six Unknown Fed. Narcotics Agents*, 403 U. S., at 410 ("For people in Bivens' shoes, it is damages or nothing"). It is this recognition that has required the denial of absolute immunity to most public officers. At the same time, however, it cannot be disputed seriously that claims frequently run against the innocent as well as the guilty—at a cost not only to the defendant officials, but to society as a whole.²² These social costs include the expenses of litigation, the diversion of official energy from pressing public issues, and the deterrence of able citizens from acceptance of public office. Finally, there is the danger that fear of being sued will "dampen the ardor of all but the most resolute, or the most irresponsible [public officials], in the unflinching discharge of their duties." *Gregoire v. Biddle*, 177 F. 2d 579, 581 (CA2 1949), cert. denied, 339 U. S. 949 (1950).

In identifying qualified immunity as the best attainable accommodation of competing values, in *Butz*, *supra*, at 507–508, as in *Scheuer*, 416 U. S., at 245–248, we relied on the assumption that this standard would permit "[i]nsubstantial lawsuits [to] be quickly terminated." 438 U. S., at 507–508; see *Hanrahan v. Hampton*, 446 U. S. 754, 765 (1980) (POWELL, J., concurring in part and dissenting in part).²³ Yet petitioners advance persuasive arguments that the dismissal of insubstantial lawsuits without trial—a factor presupposed in the balance of competing interests struck by

²² See generally Schuck, *Suing Our Servants: The Court, Congress, and the Liability of Public Officials for Damages*, 1980 S. Ct. Rev. 281, 324–327.

²³ The importance of this consideration hardly needs emphasis. This Court has noted the risk imposed upon political officials who must defend their actions and motives before a jury. See *Lake Country Estates, Inc. v. Tahoe Regional Planning Agency*, 440 U. S. 391, 405 (1979); *Tenney v. Brandhove*, 341 U. S. 367, 377–378 (1951). As the Court observed in *Tenney*: "In times of political passion, dishonest or vindictive motives are readily attributed . . . and as readily believed." *Id.*, at 378.